Temporary
4881

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of SEVEN HUNDRED AND FIFTY THOUSAND DOLLARS ($750,000), certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of Waldemar Conrad Von Zedtwitz, residing in Germany, whom, after investigation, he did determine to be an enemy within the purview of said Act as amended, which said real estate is situate in the County of Jefferson, State of Kentucky, and described as follows: to-wit:

BEGINNING at an iron pin in the center of the Taylorsville Road, at a corner common to the tract herein conveyed and the property of W. F. Randolph; thence with the Eastwardly line of the property of said Randolph North 33 degrees 33 minutes West, 2081.4 feet to an iron pipe, corner to tract of land now known as Broadmeade, and also corner to said Randolph; thence with the Eastwardly line of said tract of land known as Broadmeade North 33 degrees 39 minutes West, 1575 feet to an iron pin, corner to said Broadmeade and the Subdivision known as Douglas Park; thence with the Eastwardly line of said Douglas Park North 33 degrees 34 minutes West, crossing Beargrass Creek, in all 1392 feet to a stake, corner to said Douglas Park and the subdivision known as Alta Vista; thence with the Eastwardly line of said Alta Vista North 33 degrees 36 minutes West 1884.7 feet to a stone in a line of said Alta Vista; and corner to the tract of land now owned by Lawrence Jones, formerly owned by John M. Atherton; thence with the Southerly line of said Jones tract North 58 degrees 45 minutes East, 2160.5 feet to a stone, corner to said Jones and the Subdivision known as Cherokee Gardens; thence with the Southerly line of said Cherokee Gardens, Hume Logan, Dinwiddie Lampton, and George M. Clark, North 58 degrees 35 minutes East, 1631.4 feet to a stone, corner to said Clark tract and the tract known as St. Mary's College property; thence with the Southerly line of said property, and also with the Southerly line of the property owned by the Louisville Gas and Electric Company, North 58 degrees 38 minutes East, 1815.7 feet to a stone in the Westwardly line of Cannon's Lane; thence with the Westwardly line of said Cannon's Lane South 32 degrees 27 minutes East, 497 feet to an iron pipe in the Northerly line of a private Road laid out for the

use and benefit of the property adjoining the property herein conveyed on the South; thence with the Northerly line of said private Road, and same extended, South 58 degrees 50 minutes West, 2796.7 feet to an iron pipe at the Northwestwardly corner of the tract of land owned by Rose Eline; thence with the Westwardly line of said Eline tract, and also with the Westwardly line of the tract now owned by Wm. Speed, and also with the Westwardly line of a tract owned by John Ruppel, South 33 degrees 25 minutes East, 3663.3 feet to a stone, corner to said Ruppel and Steinmetz; thence with the Westwardly line of said Steinmetz tract South 33 degrees 33 minutes East, 521 feet to a stone, corner to said Steinmetz and J. Hettinger; thence with the Westwardly line of said Hettinger tract South 33 degrees 28 minutes East 1058.4 feet to a stone, corner to said Hettinger and Joe Schaefer; thence with the Westwardly line of said Schaefer tract South 33 degrees 38 minutes East, 1057.5 feet to a stone, corner to said Schaefer and F. J. Eicher; thence with the Westwardly line of said Eicher tract South 33 degrees 29 minutes East, 1747.3 feet to an iron pin in the North line of Cannon's Lane and corner to said Eicher; thence with the Northerly line of said Cannon's Lane South 59 degrees 18 minutes West, 74.25 feet to a stone at a corner of said Lane; thence with the Westwardly line of said Lane South 34 degrees 47 minutes East, 380.33 feet to an iron pin in the center line of the Taylorsville Road hereinabove mentioned; thence with the center line of said Road North 85 degrees 58 minutes West, 3429.8 feet to the point of beginning, containing 540.07 acres; and

BEING the same property devised to Waldemar Conrad Von Zedtwitz by the will of Mary Elizabeth Von Zedtwitz, dated November 30, 1909, and recorded in Will Book 31, Page 101, in the office of the Clerk of the County Court at Jefferson County, Kentucky, said property having been transferred to the Alien Property Custodian of the United States under the Statutes of the United States.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of said real estate has been received by the Alien Property Custodian.

(b) That said real estate produces no income at present and if converted into cash and deposited in the Treasury a reasonable income would be derived therefrom.

(c) The said Waldemar Conrad Von Zedtwitz, for whom said property is held, has requested said sale and executed a deed conveying said lands to the Board of Park Commissioners of the City of Louisville, the purchaser of said real property, which said deed is to be filed simultaneously with the deed executed by the Alien Property Custodian.

CALVIN COOLIDGE

THE WHITE HOUSE,
May 9, 1928.

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